Harinarayan vs State Of U.P. on 4 August, 2021

Author: Ram Krishna Gautam

Bench: Ram Krishna Gautam

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 65

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 21372 of 2021

Applicant :- Harinarayan

Opposite Party :- State of U.P.

Counsel for Applicant :- Nanhe Lal Tripathi

Counsel for Opposite Party :- G.A.

Hon'ble Ram Krishna Gautam,J.
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Heard over bail application moved by accused-applicant, Harinarayan, in Case Crime No. 70 of 2020, under Sections 147, 148, 149, 452, 304, 307, 323, 324, 325, 504, 506 IPC, Police Station Girar, District Lalitpur.

Learned counsel for the applicant argued that the accused-applicant is innocent; he has been falsely implicated in this very case crime number and is languishing in jail since 18.02.2021; he is of no criminal antecedent and there is no likelihood of fleeing from course of justice or tempering with evidence in case of release on bail; no specific role has been assigned to any of accused out of seven named in first information report; deceased side and co-accused side are of one and common family; dispute had arisen owing to ancestral property dispute; for the same occurrence, a cross case of Case Crime No. 71 of 2020, under Sections 324, 323, 504, 506 IPC was got registered by Smt. Rekha against Babu, Jagat and Chote Lal; which side was aggressor is a question of fact and is to be seen by trial court. Hence, bail has been prayed for.

Learned AGA has vehemently opposed, but could not dispute the fact that applicant is of no criminal antecedents and it is a cross case version wherein both side have suffered injury.

Having heard and gone through materials placed on record, considering all those facts and circumstances, the nature of accusations, severity of the punishment in the case of conviction and nature of supporting evidence, reasonable apprehension of tempering with the witness and prima facie case, but without commenting on merit of case, a case for bail is made out.

Accordingly, the bail application is allowed.

Let the accused-applicant, Harinarayan, involved in above mentioned case crime number be released on bail, on his executing a personal bond and two reliable sureties each, in the like amount to the satisfaction of the court concerned, subject to the following conditions:

1. The applicant will not tamper with the evidence.

2. The applicant will not indulge in any criminal activity.

3. The applicant will not pressurize/intimidate the prosecution witnesses and co-operate in the trial.

4. The applicant will appear regularly on each and every date fixed by the trial court, unless his personal appearance is exempted through counsel by the court concerned.

5. The party shall file computer generated copy of such order downloaded from the official website of High Court, Allahabad.

6. The computer generated copy of such order shall be self attested by counsel of the party concerned.

7. The concerned Court/ Authority/ Official shall verify the authenticity of such computerized copy of the order from the official website of High Court, Allahabad, and shall make a declaration of such verification in writing.

In the event of breach of any of the aforesaid conditions, the court below will be at liberty to proceed to cancel his bail.

Order Date :- 4.8.2021 Ravi Prakash